

Foundational Law Citation (The Order)

ORDER

PC

[2026] VJS-PC 4 · 9 June 2026

BINDING

 · assent: standing bounded assent · subject: governance.foundational-law-citation

3-0 Privy Council ruling on citation convention: cite statute by instrument+section, case law by its case (neutral citation).

V2 Privy Council, 3-0, hybrid. The binding convention: cite by source - a statute or instrument by its enacting instrument and section, and case law by its case (neutral citation), never by a pseudo-section, its binding content being its ratio. V1's CASE-LAW is a hybrid: the P articles (s.1,2,3,9,10,13,14, 23) are genuine Sovereign-enacted constitutional statute (properly sectioned), and the SC articles (s.4-8, s.11, s.18-22) are case law whose true address is the case in their source column. Re-cutting the entrenched, section-keyed, immutable-digest V1 document is rejected (non-disturbance); it stays as-is in the archive. The split is carried prospectively at the restatement step so a future generation inherits a clean separation. The entrenched section-keyed amendment procedure and entrenchment list bind only the P/constitutional statute and are untouched. Re-citing the live V2 corpus (digest, Framework Act, Doctrine, filed-opinion source tags) is a governed, meaning-preserving clerical pass needing no fresh adoption; the case-to-section mapping is lodged as a register; the principle-20 citation gate is extended to fail closed on a pseudo-section over a court-made article.

DIRECTIVE	ACTOR	MUST
D1	agent	cite statute by instrument and section and case law by its case neutral citation
D2	registrar	re cite the live v2 corpus by a governed meaning preserving clerical pass off the source column
D3	agent	lodge the case to section mapping as a resolvable register
D4	agent	extend the principle 20 gate to fail closed on a pseudo section over a court made article

FORBIDDEN
re cutting or re sectioning the entrenched v1 case law document
citing case law by a pseudo section instead of its case
changing any legal meaning in the clerical re citation pass

Cite by source: statute by instrument+section, case law by its case (neutral citation), never a pseudo-section. V1 CASE-LAW is a hybrid (P=statute, SC=case law); it stays intact in the archive, the split carried forward at the

restatement step. Re-citing the live corpus is a governed clerical pass (no adoption); the case-to-section mapping is lodged as a register; the principle-20 gate fails closed on a pseudo-section over a court-made article.

